23LBCV02203 23LBCV02203

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-25

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Case Number: 23LBCV02203 Hearing Date: August 25, 2026 Dept: S28

BACKGROUND

On
November 17, 2023, Plaintiff Jose Muratalla ("Plaintiff") commenced this action against Defendant Kia America, Inc. ("Defendant"), alleging statutory violations of the Song-Beverly Act.

The
parties settled the case before trial.

On
April 14, 2026, the Court denied Defendant's Motion to Tax Costs.

On
April 14, 2026, Plaintiff filed the instant Motion for Attorney's Fees.

On
June 5, 2026, Defendant filed opposition.

On
August 18, 2026, Plaintiff filed a reply.

DISCUSSION

Applicable
Law

A prevailing party is entitled to reasonable attorney fees in addition to other costs. (Code Civ Proc. § 1033.5(a)(10).) "Prevailing party" includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. (Code Civ Proc. § 1032(a)(4).) In all other circumstances, the "prevailing party" shall be as determined by the court. (Ibid.)

The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal. 4th 1084, 1095.) "The lodestar figure may then be adjusted, based on consideration of facts specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Gorman v. Tassajara Dev. Corp. (2008) 162 Cal.App.4th 770, 774.)

In determining whether to adjust the lodestar figure, the court may consider the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm LLC v. Teitler (2008) 162 Cal.App.4th 770, 774.)

The prevailing party bears the burden of proof and the amount is left to the trial court's sound discretion. (Christian Research Institute v. Alnor (2008) 165 Cal. App. 4th 1315, 1320.) A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. (Serrano v. Unruh (1982) 32 Cal.3d 621, 635.)

Analysis

A.
Entitlement to Attorney's Fees

On November 6, 2025, the parties reached a settlement in principle. (Oliva Decl., ¶ 72.) The parties appeared for an OSC re Dismissal on

January 5, 2026. (Id., 74.) One week later the Release, which specified that Defendant would pay Plaintiff's fees and costs in addition to the principle settlement amount and that all parties agreed Plaintiff was the prevailing party for purposes of any related Motion, was finalized and signed. (Id., 75.)

Plaintiff now seeks a total fee award of $88,082.80, comprised of the following: (1) $83,082.80 incurred in attorney's fees; and (2) an additional $5,000.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply brief, and attend the hearing on this Motion. (Mot., p. 1.) As the prevailing party, Plaintiff is entitled to reasonable fees and costs. (Civ. Code § 1794(d).).

B.
Reasonableness

Defendant first requests that the Court limit Plaintiff's fee recovery to no more than $13,491.50, representing fees incurred before Defendant's August 1, 2024, section 998 offer, and deny Plaintiff's additional $5,000 anticipated-fee request. Alternatively, if the Court declines to apply a complete 998 cutoff, Defendant requests that the Court reduce Plaintiff's claimed lodestar by at least $33,869.00 for unsuccessful, unnecessary, clerical, excessive, and collateral work, deny the $5,000 anticipated fee request, and award no more than $49,209.50. (Opp., p. 12.)

"Even after determining that a party is entitled to fees because it 'prevailed,' the trial court must still determine what amount of fees would be 'reasonable' in light of the relative extent or degree of the party's success in obtaining the results sought." (Sokolow v. County of San Mateo (1989) 213 Cal.App.3d 231, 247.)As to Song–Beverly warranty claims, prevailing buyers have the burden to show that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amounts. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998 (Doppes).)

Records amounting to vague block billing are not objectionable per se, but are a risky choice, because moving parties have the burden to support fees requests, and the strategy may lead to trial courts' discretionary curtailing of the number of compensable hours. (Christian Research Inst. v. Alnor (2008) 165 Cal.App.4th 1315, 1325.) "'In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.'" (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488. Accord, Etcheson v. FCA US LLC (2018) 30 Cal.App.5th 831, 848.)

"The Song-Beverly Act's attorney fee provision ""requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.'" (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.) Under the Song-Beverly Act, the question whether attorneys' fees were reasonably incurred may depend on circumstances including, "factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved." (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470. The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.)

i. Fees Incurred After 998 Offer

"If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their post-offer costs and shall pay the defendant's costs from the time of the offer." (Code Civ. Proc., § 998, subd. (c)(l).)

On August 1, 2024, Defendant served a 998 offer of $49,000, exceeding the $26,500 Plaintiff ultimately accepted. (Pratty Decl., ¶¶ 3, 7, Exs. A, B.)
Defendant argues that under section 998, Plaintiff cannot recover the fees and costs incurred after Defendant's 998 offer, which Plaintiff declined, because Plaintiff failed to obtain a more favorable result. (Opp., p. 2.)

Here,
Defendant incorrectly interprets section 998 to limit attorney's fees post-offer, but the statute refers only to limiting post-offer costs. Defendant's cited authority, Madrigal v. Hyundai Motor America (2025) 17 Cal.5th 592, similarly only discussed the "cost-shifting" under 998 and provides no support for limiting post-offer attorney's fees. The Court has already ruled on Defendant's Motion to Tax Costs, and Defendant did not raise this argument there. Thus, Plaintiff's attorney's fees will not be reduced on this basis.

ii.
Hourly Rate

"In determining hourly rates, the court must look to the 'prevailing market rates in the relevant community.'" (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) In making this determination, "[t]he court may rely on its own knowledge and familiarity with the legal market." (Ibid.) "Affidavits of the plaintiffs' attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate." (Ibid.)

Defendant next argues that all hourly rates above $350/hr. should be reduced to a more reasonable $350/hr. per Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 256.

Here,
counsel's hourly rates, ranging from $200 to 540/hr are reasonable given their experience, the locality of the services provided, and evidence submitted by Plaintiff of the same hourly rates upheld for the same attorneys in other cases in Los Angeles County. (Reply, p. 4.)

Thus,
counsel's hourly rates will not be reduced.

iii.
Disputed Billing Categories

Defendant further disputes the following billing categories:

1. 16.7 hours totaling $8,084.50 for the First PMQ Motion, and 9.7 hours totaling $5,141.00 for the Second PMQ Motion

Defendant contends that Plaintiff's first motion to compel further Person Most Qualified ("PMQ") testimony was denied, and fees for unsuccessful and unnecessary motion practice should not be shifted. Defendant further argues that Plaintiff's second PMQ motion was unnecessary because, although ultimately granted, the deposition never occurred and produced no testimony, admissible evidence, or settlement value. (Opp., p. 6.)

Here, the proper inquiry is whether these fees were reasonably incurred at the time they were billed, rather than with hindsight. These fees appear reasonably necessary to the conduct of the litigation and reasonable in amount based on the work involved. Both motions necessitated filing lengthy and detailed separate statements concerning the PMQ's testimony and need for further depositions. Defendant makes only conclusory statements rather than legal argument as to why Plaintiff should not recover these PMQ motion fees. Defendant does not provide any legal authority for its argument that Plaintiff cannot recover fees for unsuccessful motions, or for motions that ended up being unnecessary with hindsight because the parties settled soon after. Overall, Defendant makes no compelling argument as to why these motions were not reasonably necessary to the conduct of the litigation. Thus, these hours will not be reduced.

2. 14.0 hours totaling $6,601.00 for Sanctions/Compliance Motion Practice

Defendant argues that Plaintiff devoted substantial time to sanctions and compliance motion practice relating to internal documents and other discovery categories, which did not prove Plaintiff's claim, did not produce trial evidence, and did not result in any completed PMQ testimony.

Here, Defendant's argument that these fees were for collateral discovery litigation that generated fees without improving Plaintiff's recovery is incorrect, and more importantly, immaterial. Again, the proper inquiry is whether these fees were reasonably necessary to the conduct of the litigation. This motion practice ensured that Defendant served verified discovery responses and document production in compliance with the Court's Order, with the Court finding that "sanctions are appropriate. Defendant must pay Plaintiff $500/day until it is in full compliance with the 2/27/25 order. Defendant must comply with the order forthwith if it wishes to avoid terminating, issue, and/or evidentiary sanctions." (Minute Order, 6/10/25.) Without this motion practice, Plaintiff arguably would not have protected their rights and entitlement to discovery.
Defendant again makes only conclusory statements rather than legal argument as to why Plaintiff should not recover these fees. Thus, these hours will not be reduced.

3. 27.1 hours totaling $5,827.00 for Clerical or Secretarial Tasks

Defendant argues that filing, calendaring, proofs of service, saving documents, reviewing conformed copies, checking filing acceptance, and calculating deadlines are not compensable attorney-fee work but were billed at paralegal rates.

Here, Defendant failed to properly identify the disputed entries. The Court is not inclined to go searching through the records. Further, these tasks were properly performed by a paralegal at a reduced rate. The Court finds these entries reasonable.

4. 14.5 hours totaling $7,356.00 for Post-Settlement and Fee/Cost Work

Defendant asserts that Plaintiff seeks substantial post-settlement fees, including time spent on the memorandum of costs, the cost motion, the fee motion, and anticipated reply/hearing work. Defendant argues that these amounts are unreasonable as this is a template Song-Beverly fee motion supported by recycled rate declarations and prior fee orders. Defendant further contends that Plaintiff should not recover excessive fees for fee litigation, particularly after rejecting a more favorable 998 offer and settling for substantially less.

Here,
Defendant again failed to properly identify the disputed entries. Thus, these hours will not be reduced.

5. 1.8
hours totaling $859.50 for Trial Preparation

Defendant argues that Plaintiff’s billing records include trial-preparation work, including motions in limine and trial documents, that did not lead to trial and did not materially contribute to settlement.

Here, Plaintiff’s trial preparation
work was properly incurred as it was reasonably necessary to the conduct of the litigation. Plaintiff’s counsel necessarily acted to protect their client’s interests in the event that the case did not settle and instead proceeded to trial. It is unreasonable to expect Plaintiff’s counsel to have acted with hindsight that a settlement would soon follow which would eliminate the need for trial. Even amidst ongoing settlement discussions, counsel must comply with trial preparation requirements. Thus, these hours will not be reduced.

5.
$5,000 for Anticipated Fees to Review and
Reply to Opposition

Defendant argues that Plaintiff's $5,000
in anticipated fees for reviewing Defendant's opposition, preparing a reply, and attending the hearing on the instant motion should be denied because Plaintiff has not submitted actual billing records for this anticipated work, which is arguably minimal due to the boilerplate nature of these lemon law fee motions.

Here,
the Court finds Plaintiff’s counsel’s estimated time for reviewing Defendant's opposition, preparing a reply, and attending the hearing is excessive given Plaintiff's actual reply is 7 pages long and does not address at length any of the disputed entries. Thus, this amount will be reduced by $3,500.

iv.

Multiplier

The Court will not award any fee multiplier. Plaintiff’s counsel did not obtain a more favorable result than the initial 998 offer, and the Court does not believe this matter involved any complex or novel legal issues warranting any multiplier. Indeed, Plaintiff’s counsel litigates dozens of matters nearly identical to this one, often using templates and generally abiding by the same litigation strategy.

CONCLUSION

Plaintiff’s Motion for Attorney’s Fees is GRANTED in the reduced amount of $84,582.80.